

State Legislatures

(Part-VI: Articles 168-212)

The **Constitution of India** establishes a federal structure that divides powers between the Central and State Governments. State Legislatures, governed by **Part VI** (Articles 168-212), serve as primary legislative bodies, detailing their organisation, composition, and powers.

TYPES OF LEGISLATURES

- **Unicameral Legislature:** Comprises a single legislative chamber (Legislative Assembly) responsible for enacting laws, passing budgets, and discussing significant issues.
- **Bicameral Legislature:** Features two law-making bodies (Legislative Assembly and Legislative Council).

State Legislature Structure

- **State legislature consists of:** Governor + Legislative Assembly (Vidhan Sabha) + Legislative Council (Vidhan Parishad) (in case of bicameral).

- **No Uniformity:** Indian state legislatures vary in structure.
- **Bicameral Legislatures:** Six states have a bicameral system:
 - **States:** Andhra Pradesh, Telangana, Maharashtra, Karnataka, Uttar Pradesh, Bihar.
 - **Composition:** Consists of the **Governor**, **Legislative Assembly (Vidhan Sabha)**, and **Legislative Council (Vidhan Parishad)**.
- **Article 169:** Parliament can abolish a Legislative Council or create it if the legislative assembly of the concerned state passes a resolution by a **Special Majority** to that effect. This Act of Parliament is **not to be deemed as an amendment of the Constitution** for the purposes of Art. 368 and is passed like an **ordinary piece of legislation (by Simple Majority)**.

LEGISLATIVE ASSEMBLY AND LEGISLATIVE COUNCIL

Parameters	Legislative Assembly (SLA)	Legislative Council (SLC)
Strength	• Maximum strength: 500 • Minimum strength: 60 • Arunachal Pradesh- 60, Sikkim- 32 • Goa, Mizoram- 40, Nagaland: 60	• Maximum strength: 1/3rd of total strength of the assembly. [UPSC 2015] • Minimum strength: 40 • Members are indirectly elected • Actual strength fixed by Parliament
Manner of Election	Directly elected on the basis of universal adult franchise .	5/6th of the total members are indirectly elected (proportional representation) by means of a single transferable vote • 1/3rd by members of local bodies (municipalities, district boards, etc.) • 1/3rd by members of the Legislative Assembly • 1/12th by graduates of three years standing & residing in the state • 1/12th by teachers of three years standing in the state, not lower than secondary school
Nominated Members	Article 334: One Anglo-Indian could be nominated by the Governor to the assembly. 104th CAA (2019): Abolished the reservation to Anglo-Indians	1/6th nominated by the Governor , having knowledge & experience in Cooperative Movement, Literature, Arts, Social Service, or Science

Duration	Normal term: 5 years from the first meeting after general elections. Governors can dissolve at any time. Terms can be extended by Parliament during a national emergency for one year at a time (cannot exceed six months after the emergency ends)	Continuing chamber (permanent body); One-third of members retire every 2nd year , serving for six years . Eligible for re-election and re-nomination by the Governor
Presiding Officers	Speaker of SLA: Elected by the Assembly from amongst its members; remains in office during the life of the assembly. Deputy Speaker: Performs duties of Speaker when absent; acts as presiding officer in the Speaker's absence. Panel of Chairpersons: Nominated by the Speaker; anyone can preside in the absence of the Speaker.	Chairperson of SLC: Elected by the Council from amongst its members. [UPSC 2015] Deputy Chairperson: Performs duties of Chairperson when absent; acts as presiding officer in the Chairperson's absence. Panel of Vice-Chairpersons: Nominated by the Chairman; anyone can preside in the absence of the Chairman.
Powers & Duties	Maintains order & decorum , interprets provisions of Constitution & rules, adjourns assembly, votes in case of a tie, allows secret sittings, final decision on Money Bill , decides disqualification under 10th Schedule , appoints chairman of committees, presides over specific committees.	Same as SLA, with additional duties related to the Council's functioning.
Oath or Affirmation	Must make and subscribe to an oath before the Governor or appointed person; without it, cannot vote or participate in proceedings. Penalty of Rs 500 for each day sitting or voting without taking the oath or being disqualified.	
Qualification	Constitutional ● Citizenship: Must be a citizen of India. ● Oath: Must affirm allegiance to the Constitution and uphold India's sovereignty. ● Age: At least 30 years for the Legislative Council, 25 years for the Legislative Assembly. ● Other Qualifications: As prescribed by Parliament. Representation of People's Act, 1951 ● Legislative Council: Must be an elector in the state and a resident; eligible for Governor's nomination. ● Legislative Assembly: Must be an elector in the state. ● Reserved Seats: Must belong to a Scheduled Caste or Tribe to contest reserved seats, but can contest unreserved seats as well.	
Disqualification	Constitutional ● Office of Profit: Cannot hold any profit-making office under Union or state government (exceptions apply). ● Unsound Mind: Declared by a court. ● Insolvency: Must not be an undischarged insolvent. ● Citizenship: Must not hold foreign citizenship. ● Parliamentary Disqualifications: As defined by law. Representation of People's Act, 1951 ● Election Offences: Must not be guilty of corrupt practices. ● Criminal Conviction: Cannot be convicted for crimes resulting in two or more years of imprisonment (preventive detention is exempt). ● Election Expenses: Must submit accounts on time. ● Government Contracts: No interest in government contracts or corporations with 25% government share. ● Service Dismissal: Must not have been dismissed for corruption or disloyalty. ● Social Crimes: Must not be punished for offences like untouchability, dowry, or sati. ● Note: The governor's decision on disqualifications is final, with input from the Election Commission. Anti-Defection Law: Under the 10th Schedule, disqualification due to defection is determined by the Chairman (Council) or Speaker (Assembly), not the Governor. Decisions are subject to judicial review as per 1992 (Kihoto Hollohan v/s Zachillhu).	

Vacation of Seats	• Double membership: cannot be a member of both houses • Disqualification as per Constitution or RPA 1951 or Tenth Schedule • Resignation to Chairman of Council or Speaker of Assembly • Absence for 60 days without permission • Other cases include election voided by court, expelled, elected as President/VP, or appointed as Governor
Salaries and Allowances	Fixed by the state legislature ; charged on the Consolidated Fund of the State, not subject to annual vote.

Provisions Exclusive to State Legislative Assemblies

- **Territorial Constituencies:** Each state is divided into **territorial constituencies**; constituencies are demarcated to maintain a uniform ratio between **population** and **seats**.
- **Readjustment after Each Census:** **Readjustment** of total number of seats in the assembly and division into constituencies after each census; **Parliament** determines the authority and its manner.
- **Reservation of Seats for SCs & STs:** **Readjustment** of total number of seats in the assembly and division into constituencies after each census; **Parliament** determines the authority and its manner.

SESSIONS OF STATE LEGISLATURE

- **Summoning:** The **Governor** summons sessions. Maximum gap between two sessions is **6 months**.
- **Adjournment:** Suspends work for a specific time (hours, days, weeks). **Adjournment sine die** ends a sitting indefinitely. Power lies with the **Presiding officer**.
- **Prorogation:** Follows **adjournment sine die**; the **Governor** issues a notification. The Governor can also prorogue the House in session.
- **Dissolution:** Ends the life of the assembly.

Quorum: Minimum **10 members** or **1/10th** of total members (whichever is greater). Without quorum, the meeting is either **adjourned** or **suspended**.

Lapsing of Bills on Dissolution

- **Bill Lapses:** If pending in assembly or passed by the assembly but pending in Council.
- **Bill Doesn't Lapse:** If pending in the Council but not passed by assembly, or passed by both houses awaiting **Governor** or **President's assent**.

Voting in House

- **Simple majority** for most matters.
- **Special majority** for creation/abolition of Legislative Council.
- **Absolute majority** to remove the Speaker or Chairman.
- **Casting vote:** Speaker/Chairman votes only in case of a tie.

Language in Legislature: **Official language** of the state, **Hindi** or **English** is used. Members may address the house in their **mother tongue** with permission. **State Legislatures** can decide to continue or discontinue English after **15 years** (up to **40 years** in some states).

Rights of Ministers & Advocate General: They can speak in either house or committees but **cannot vote**. (Can vote only in the house in which they are elected member).

LEGISLATIVE PROCEDURE IN STATE LEGISLATURE

Ordinary Bill

- **Introduction:** Can originate in either house, introduced by a **minister** or **private member**. Passes through **three readings**. Sent to the **second house** after passing the originating house. In **unicameral legislatures**, sent directly to the **Governor** for assent.
- **In the Second House: Four options:**
 - Pass without amendments
 - Pass with amendments, return to Assembly
 - Reject the bill
 - Keep pending for **3 month**
 - If the Council disagrees, the Assembly can pass it again. **Ultimate power** lies with the Assembly, and the Council can delay for **4 months** maximum. No **joint sitting** for disagreements.
- **Governor's Assent: Four alternatives:**
 - Give assent (bill becomes law)
 - Withhold assent (bill ends)
 - Return for reconsideration
 - Reserve for **President's consideration**
- **President's Assent: Three alternatives:**
 - Assent
 - Withhold assent
 - Return for reconsideration; if passed again, the President is not obliged to assent.

Money Bill

- **Introduction:** Only in the Legislative Assembly, on Governor's recommendation, introduced by a minister.
- **In the Second House:** The Council can only recommend changes and must return the bill in **14 days**. If the Council fails, or if the Assembly rejects the recommendations, the bill is deemed passed.
- **Governor's Assent:** Assent; Withhold or Reserve for President's assent (Cannot return for reconsideration).
- **President's Assent:** Same as for ordinary bills.

Bills Reserved for President's Consideration

- **Must Be Reserved:** Bills affecting **High Court powers** (Article 200), **water/electricity taxes** (Article 288), or during a **financial emergency** (Article 360).
- **May Be Reserved:** Bills conflicting with **Articles 14 and 19**, those on **Concurrent List** (Article 254), or restricting **trade and commerce** (Article 304).
- **Discretionary:** Governor may reserve any bill under **Article 200**

Position of Legislative Council

Equal Status with Assembly

- Introduction and passage of **ordinary bills**.
- Assembly's will prevails in case of **disagreement**.
- Approval of **ordinances** issued by the **Governor** (Art. 213).
- **Selection of ministers**, including the Chief Minister.
- Consideration of **reports** from bodies like State Finance Commission and CAG.
- **Enlargement** of State Public Service Commission's jurisdiction.

Unequal Status with Assembly

- **Money bills** can only be introduced in the Legislative Assembly.
- The **Council** cannot amend or reject money bills.
- Only the **Speaker** decides whether a bill is a **money bill** or not.
- Final power for passing **ordinary bills** lies with the Assembly.
- The Council can **discuss the budget** but cannot vote on demands.
- Does not participate in the **election of the President** or **Rajya Sabha** members.
- Limited role in **Constitutional amendment bills**.
- **No confidence motion** can only be initiated in the Assembly.
- The **Council's existence** depends on the Assembly's will.

Privileges of State Legislature

- Privileges include **special rights, immunities, and exemptions** enjoyed by the houses, their committees, and members. Extended to those entitled to participate, like the **Advocate General** and ministers, but not the **Governor**.

Collective Privileges

- Right to **publish** or prohibit the publication of reports, debates, and proceedings.
- Ability to hold **secret sittings**.
- Can regulate its own **procedure** and punish breaches of privilege.
- Right to receive immediate information on **arrest, detention, or release** of members.
- Initiate **inquiries**, summon witnesses, and access relevant papers.
- **Courts cannot inquire** into legislative proceedings.
- **No person can be arrested** within the legislature's precincts without the presiding officer's permission.

Individual Privileges

- **Immunity from arrest** during sessions (except in criminal or preventive detention cases).
- **Freedom of speech** in the legislature; members cannot be held accountable in court for their statements.
- Exemption from **jury service** and court appearances during sessions.

Comparison between SLC, RS, LS & SLAs

Aspect	State Legislative Council	Rajya Sabha (RS)	Lok Sabha (LS)	State Legislative Assemblies)
Position and Power	Weaker than the Assembly	Equal to Lok Sabha except in financial matters	More powerful in financial matters	More powerful than the State Legislative Council
Constitutional Importance	Lesser importance under the Constitution	Vital role in maintaining federal structure	High importance as the lower house	Important for state governance
Representation	Represents specific interest groups; members elected indirectly or nominated	Represents states and union territories nationally; members elected by State Assemblies	Represents the entire nation; members directly elected	Represents specific states; members directly elected
Legislative Procedure	Can initiate and discuss bills; Assembly has final say	Can discuss and amend bills; participates equally in legislative process	Initiates financial bills; sole authority in financial matters	Can initiate and pass bills; final authority over legislation
No-confidence Motion	Cannot initiate no-confidence motion	Cannot initiate no-confidence motion	Initiate and pass no-confidence motions	Initiate and pass no-confidence motions
Tenure of Members	Members serve for 6 years	Members serve for 6 years	Members serve for 5 years	Members serve for 5 years
Disqualification of Members	Governed by the Constitution and state laws	Governed by the Constitution and Parliamentary laws	Governed by the Constitution and electoral laws	Governed by the Constitution and electoral laws
House Permanency	Permanent house. However can be abolished by parliamentary legislation based on a state assembly resolution for the same. (Article 169)	Permanent house; cannot be abolished	Not permanent; elections held every five year	Not permanent; elections held every five years
Special Powers	Lacks special powers	Approving Emergency proclamations and All India Services (Articles 352, 312)	Holds exclusive powers in financial matters	Lacks special powers

